

FIRST ENDORSEMENT

Chief Prosecutor Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr., Department Advocate's Office, December 26, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2024-30553 against Sergeant Alex Guess, Tax Registry No. 951797. This case was conferenced on December 17, 2024, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the negotiated penalty of the total forfeiture of twenty (20) vacation days, after a guilty plea.

Andre Applewhite

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Chief Prosecutor
New York City Civilian Complaint Review Board

APPROVED
MAR 04 2025
Jessica S. Tisch
JESSICA S. TISCH
POLICE COMMISSIONER

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

CASE NO.
C-031067BOOK & PAGE NO.
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PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, GUESS	FIRST ALEX	M.I.	COMMAND 318
SHIELD NO. 4762	TAX REGISTRY NO. 951797	SOCIAL SECURITY NO.	DATE APPOINTED 01/09/2012	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED
TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Alex Guess, on or about January 7, 2023, at approximately 1355, while assigned to INT FIO PRG and on duty, in the vicinity of Surf Avenue and West 28th Street, Kings County, engaged in conduct prejudicial to the good order, efficiency, or discipline of the New York City Police Department, in that he was discourteous to § 87(2)(b) by stating in sum and substance, "The fuck you running from me for? You fucking fag," without police necessity.	PLEADED GUILTY	VACATION DAYS 20.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Sergeant Alex Guess, on or about January 7, 2023, at approximately 1355, while assigned to INT FIO PRG and on duty, in the vicinity of Surf Avenue and West 28th Street, Kings County, used offensive language, in that he made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b) by 3. stating in sum and substance, "fag," without police necessity.	PLEADED GUILTY	

FIRST DEPUTY COMMISSIONER

2/5/25
DATE**POLICE COMMISSIONER'S APPROVAL**☒ Approved☐ Disapproved☐ Other Action (Describe)

POLICE COMMISSIONER

3/4/25
DATE